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IN THE CIRCUIT COURT OF THE FOURTH JUDICIAL CIRCUIT, IN AND FOR DUVAL COUNTY, FLORIDA

STEFEN WYNN,

Plaintiff,

v.

CITY OF NEPTUNE BEACH,

Defendant.

_____/

CASE NO.: 23-CA-
FLA BAR NO.: 0739685

COMPLAINT

Plaintiff, STEFEN WYNN, hereby sues Defendant, CITY OF NEPTUNE BEACH, and alleges:

NATURE OF THE ACTION

1. This is an action brought under §112.3187, Florida Statutes.

2. This action involves claims which are, individually, in excess of Fifty Thousand Dollars ($50,000.00), exclusive of costs and interest.

THE PARTIES

3. At all times pertinent hereto, Plaintiff, STEFEN WYNN, has been a resident of the State of Florida and was employed by Defendant. Plaintiff is a member of a protected class due to retaliation he experienced after reporting matters that are protected under §112.3187(5), Florida Statutes.

4. At all times pertinent hereto, Defendant, CITY OF NEPTUNE BEACH, has been organized and existing under the laws of the State of Florida. At all times pertinent to this action, Defendant has been an "employer" as that term is used under the applicable laws identified above. Defendant was Plaintiff's employer as it relates to these claims.

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CONDITIONS PRECEDENT

5. Plaintiff has satisfied all conditions precedent to bringing this action, if any.

STATEMENT OF THE ULTIMATE FACTS

6. Plaintiff, a protected Whistleblower, began his employment with Defendant on or about January 6, 2020, and held the position of City Manager at the time of his wrongful termination on January 17, 2023.

7. Despite his stellar work performance during his employment with Defendant, Plaintiff was subjected to a hostile work environment, disparate treatment, different terms and conditions of employment, and held to a different standard because of his Whistleblower status, and because he reported Defendant's unlawful employment activities and was subject to retaliation thereafter.

8. The disparate treatment and retaliation came at the hands of specifically but not limited to Defendant's City Councilor Lauren Key and Defendant's City Council.

9. On March 15, 2022, Plaintiff submitted a written complaint to Defendant regarding suspected fraud in its building and permit department. The complaint was submitted to Defendant's City Auditors and Plaintiff told the City Council about his report both verbally and, upon information and belief, in an email.

10. Plaintiff later reported mismanagement of funds which was related to the Defendant's police department's spending over 100 percent of Defendant's ad valorem budget, both verbally and in writing in August, 2022.

11. In addition, Plaintiff made reports of a potential conflict of interest related to police department Commander Michael Key, husband of Councilor Key. These reports were made verbally to Michael Key who reported the allegation to his wife.

12. Upon Councilor Key's marriage to Commander Key, Plaintiff began to notice questionable expenditures within the Defendant's police department. Plaintiff thereafter began questioning police department's expenditures due to the conflict of interest presented by Councilor Key's marriage to Commander Key who was second in charge of Defendant's police department and over its fiscal functions.

13. On August 15, 2022, Plaintiff learned that certain additional improper expenses had been made by Michael Key that were overspending the police department's budget and violated the Defendant's procurement policy. At that time, Plaintiff called Councilor Key and told her that the police department's budget was seriously overspent, violated the Department's procurement policy and that something needs to happen immediately. Councilor Key was the head of Defendant's finance committee and would have been the proper person to correct the wrongdoing reported by Plaintiff.

14. Following that call and after believing that neither Michael Key nor his wife would rectify the conflict and the spending, Plaintiff then reported the conflict of interest to Police Chief, Richard Pike, personally during a meeting with him believed to be the same day, August 15, 2022.

15. Plaintiff stated to the Chief that Commander Key and Councilor Key were committing a crime by abusing and overspending Defendant's police budget and that if the police department was going to operate over budget, the proper thing to do was for the Council to increase their budget.

16. Plaintiff also reported Commander's Key's refusal to follow proper budgetary protocols. For example, Plaintiff reported Commander Key's refusal to use Defendant's proposed contract with Enterprise Fleet Management to procure police vehicles for himself and other leaders within the police department.

17. Commander Key instead insisted on Defendant's police department purchasing Chevy Tahoe's for his use by stating they were needed to respond to emergencies in flood situations due to their higher wheelbase.

18. Commander Key later admitted that he would not himself be responding to such a flood emergency due to him being a commander in the police department and not handling such calls personally. Thus, Commander Key did not need one of these vehicles for himself.

19. Councilor Key, in an effort to support her husband's personal agenda to disregard Defendant's proper budgetary protocols, publicly opposed the proposed Enterprise contract that did not include Tahoes stating "department heads know best."

20. After Plaintiff reported the wrongdoing to Chief Pike, Pike apparently contacted Councilor Key and told her about Plaintiff's reporting earlier that day.

21. There was thereafter a City Council meeting on August 15, 2022, during which Plaintiff was harassed and verbally berated by Councilor Key who stated that she wanted to discuss Plaintiff's protected reporting to Defendant's Police Chief.

22. Despite the fact that Plaintiff requested that a human resources representative be present during the Board meeting, no such representative was available.

23. Shortly after the Council meeting, Plaintiff was summoned to a meeting with Councilor Key about the issues addressed above during which he was yelled at and told by her to never make any allegations against her and her husband again.

24. During this meeting, Plaintiff told Councilor Key that she was towing a thin ethical line. Councilor Key replied by shouting at Plaintiff to go ahead and file an ethics complaint against her.

25. Following her angry tirade against Plaintiff, Councilor Key then stormed out of Plaintiff's office.

26. Plaintiff then drove immediately to Mayor Elaine Brown's home to report to her all that had transpired between Councilor Key and Plaintiff.

27. While discussing the situation at Mayor Brown's home, Plaintiff confirmed, via Brown's telephone conversation with a prominent citizen and campaign manager, that Councilor Key believed she needed to create a false pretense to protect herself from her apparent conflict of interest which Plaintiff reported to Defendant's police chief.

28. In the weeks following, Plaintiff was forced to meet with Councilor Key and Defendant's City Attorney Zachary Roth by being summoned to meetings. During these meetings, Plaintiff continued to report the wrongdoing to the Keys as set forth above but was told to apologize to Councilor Key.

29. On September 2, 2022, Plaintiff was forced to apologize to Key in a meeting between the two with Roth present that Plaintiff was summoned to attend.

30. Plaintiff was made to feel uncomfortable in the meeting and was told that his apology was halfhearted.

31. Councilor Key then began further berating Plaintiff and stated that she welcomed his resignation. Plaintiff did not resign.

32. Plaintiff responded to Roth by stating that he may need an attorney and that he had "had enough."

33. The next weeks were agonizing for Plaintiff as he was forced to deal with a toxic work environment daily when he went into the office. At the suggestion of other council members,

Plaintiff again apologized to Councilor Key. This time it was done in writing. However, this only became another weapon which Councilor Key decided to use against Plaintiff.

34. On September 19, 2022, during a Council meeting, Plaintiff was lambasted by Councilor Key and had his work performance unjustly criticized in an effort to cover up Councilor Key's conflict of interest and retaliate against Plaintiff for reporting the same.

35. On October 22, 2022, Plaintiff made another written complaint to Roth, Defendant's Chief Financial Officer, Danielle Dyer-Tyler and Defendant's entire city council including Councilor Key. The complaint detailed Plaintiff being harassed by Councilor Key at the aforementioned Council meeting and he claimed that he was a whistle blower due to the reports that he previously made.

36. In addition, Plaintiff's complaint to Roth and the Council detailed fraud in Defendant's budgetary process including overspending by Defendant's police department. This complaint came after Plaintiff was being threatened by Councilor Key in an effort to silence him from making further comments about her and her husband's conflict of interest.

37. At the next best opportunity, on January 17, 2023, Plaintiff was terminated by Defendant's City Council at the urging of Councilor Key.

38. Plaintiff was terminated for his alleged failure to ensure proper permitting for a water tower built as part of a new Publix Supermarket. The tower was dubbed the "Green Monster" by Defendant and local media.

39. Contrary to the pretextual narrative pushed by Defendant to justify Plaintiff's termination, it was Defendant's Council not Plaintiff that had actual knowledge of the Green Monster before it was built.

40. Plaintiff knew the tank was needed but never received or was made aware of any application being submitted for the same.

41. Defendant's Council knew or should have known of the tank and was in regular communication with the developer. The developer began construction on the Green Monster without applying for a permit. Defendant did not even know about the construction until on or after December 9, 2022. Eric Pardee was the Building Official with Defendant who should have been held responsible for approving and/or not approving building permits. He was not fired and the approval of the tank was never even routed to Plaintiff for approval. Instead, the approval papers were given to the Defendant's Fire Marshall for approval because it was for a fire suppression system. At no time did Plaintiff know that an application for the approval of the tank was even submitted until after the tank was built.

42. Subsequent to Plaintiff's illegal termination, upon information and belief, Defendant is giving Plaintiff bad employment references hindering Plaintiff's ability to secure alternative employment.

43. Plaintiff has retained the undersigned to represent his interests in this cause and is obligated to pay a fee for these services. Defendant should be made to pay said fee under the laws referenced above.

COUNT I
PUBLIC WHISTLEBLOWER RETALIATION

44. Paragraphs 1 through 43 above are incorporated herein by reference.

45. This count sets forth a claim against Defendant under §112.3187, et seq., Florida Statutes.

46. Plaintiff was a public employee protected under the provisions of Chapter 112, Florida Statutes.

47. As stated more specifically in part above, Plaintiff reported and disclosed violations of rules, regulations and laws, and/or malfeasance, misfeasance and/or gross misconduct to persons both inside and outside of his normal chain of command, and to others having the authority to investigate, police, manage and otherwise remedy the violations of rules, regulations and laws that he reported. Plaintiff also disclosed this information when he participated in investigations, hearings, or other agency inquiries. Plaintiff reported malfeasance, misfeasance, and other acts specifically outlined in §112.3187(5), Florida Statutes.

48. After reporting these matters and/or participating in investigations, hearings, or other agency inquiries, as related in part above, Plaintiff was the victim of retaliatory actions set forth in part above including without limitation his termination.

49. Plaintiff's termination was the result of his reporting violations of rules, regulations or laws, and/or reporting malfeasance, misfeasance or gross misconduct, and/or participating in investigations, hearings or other inquiries, specified in part above.

50. The actions of all employees within Defendant who affected Plaintiff's employment adversely did so at least in part in retaliation against him for his "whistleblowing" activities.

51. As a direct and proximate result of the actions taken against him by Defendant, Plaintiff has suffered injury, including but not limited to past and future wage losses, loss of benefits, emotional pain and suffering, loss of the capacity for the enjoyment of life and other tangible and intangible damages. These damages have occurred in the past, are occurring at present and will occur in the future. Plaintiff is entitled to injunctive relief including without limitation reinstatement.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment against Defendant for the following:

(a) that process issue and this Court take jurisdiction over this case;

(b) that this Court grant equitable relief against Defendant under the applicable counts set forth above, mandating Defendant's obedience to the laws enumerated herein and providing other equitable relief to Plaintiff;

(c) enter judgment against Defendant and for Plaintiff awarding all legally-available general and compensatory damages and economic loss to Plaintiff from Defendant for Defendant's violations of law enumerated herein;

(d) enter judgment against Defendant and for Plaintiff awarding all legally-available damages for emotional pain and suffering to Plaintiff from Defendant for Defendant's violations of law enumerated herein.

(e) enter judgment against Defendant and for Plaintiff permanently enjoining Defendant from future violations of law enumerated herein;

(f) enter judgment against Defendant and for Plaintiff awarding Plaintiff attorney's fees and costs;

(g) award Plaintiff interest where appropriate; and

(h) grant such other further relief as being just and proper under the circumstances, including but not limited to reinstatement.

DEMAND FOR TRIAL BY JURY

Plaintiff hereby demands a trial by jury on all issues herein that are so triable.

DATED this 16th day of May 2023.

Respectfully submitted,

/s/ Marie A. Mattox
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